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Impartial Analysis – Orchard School District Measure R - Parcel Tax

A school district may levy a qualified special tax upon approval by two-thirds of the votes cast on a measure pursuant to article XIIIA, section 4 of the California Constitution and California Government Code section 50079. The Board of Trustees (Board) of the Orchard School District (District) has placed on the ballot a measure to levy a parcel tax of 4 cents per square foot per parcel per year on property within the District. The Measure states that the tax would be capped annually at $89 per residential parcel and $7,500 per non-residential parcel, and would commence on July 1, 2027 and continue for eight (8) years.

State law requires that such measures state the specific purposes for which tax proceeds will be used and spend the proceeds only for these purposes. The stated purposes of the tax proposed by Measure R include, but are not limited to:

- Recruit, train, and retain highly qualified teacher and instructional staff;
- Maintain and protect strong core academic programs;
- Strengthen reading and writing skills for all students while providing targeted individual support;
- Retain student mental health counselors, social workers, and healthcare professionals;
- Create, expand, enhance, and preserve Science, Technology, Engineering, and Mathematics (STEAM) education, including artificial intelligence, computer science and coding, and robotics; and
- Provide current instructional materials, technology, spaces, equipment, and resources.

According to the Measure, the proposed tax would not apply to property that is otherwise exempt from or upon which no property taxes are levied that year. The Measure provides that multiple parcels that are (1) contiguous; (2) used solely as owner-occupied, single-family residences; and (3) held under identical ownership may, upon application by the owners by June 15 of any year, be treated as a single parcel for purposes of the tax.

The Measure also states that an owner of a parcel used solely for owner-occupied, single-family residential purposes who is (1) at least 65 years old by June 30 of the prior fiscal year; (2) receiving Supplemental Security Income for a disability, regardless of age; or (3) receiving Social Security Disability Insurance benefits, regardless of age, and whose yearly income does not exceed 250 percent of the 2012 federal poverty guidelines issued by the United States Department of Health and Human Services, may obtain an exemption upon application of the owners by June 15 of any year.

Pursuant to State law, the Measure provides accountability measures for the tax proceeds, including (1) stating that the proceeds shall be applied only to the specific purposes identified in the Measure; (2) creating a separate account into which the proceeds must be deposited; and (3) providing an annual report to the Board showing the amount of funds collected and expended and the status of any projects or programs required or authorized to be funded by the tax.

A "yes" vote is a vote to levy a parcel tax of 4 cents per square foot per parcel per year on property within the District, capped annually, as stated in the Measure, at $89 per residential parcel and $7,500 per non-residential parcel, for eight years beginning July 1, 2027.

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A "no" vote is a vote to not levy the tax.

Tony LoPresti [M]
County Counsel

By:
DocuSigned by:
[redacted]

Nick DeFiesta [M]
Deputy County Counsel

FILED
AUG 18 2026
REGISTRAR OF VOTERS
COUNTY OF SANTA CLARA
By [redacted] Deputy